

Wedding Cake Contract



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Obsessive Cupcake Disorder (PTY) LTD 2021/623273/07

This Agreement ("Agreement") is entered into between **Obsessive Cupcake Disorder** ("Vendor") and the Client ("Client") upon submission of the completed wedding cake order form and receipt of the required payment. This document sets forth the terms and conditions under which the Vendor shall prepare, deliver, and set up the wedding cake(s).

1. Booking & Confirmation

- A completed Wedding Cake Order Form and full payment to secure your booking.
- Orders are not confirmed until full payment is received and confirmed by the Vendor.
- The Vendor reserves the right to decline or cancel orders if the deposit is not received within a reasonable time frame.

2. Design & Details

- The Client shall provide detailed design instructions, including themes, colours, inspiration images, and any specific design elements, at the time of booking.
- The Vendor will provide a final design and quote based on the details supplied. Any changes requested less than 14 days before the event may incur additional charges and are subject to feasibility.
- The Vendor reserves the right to make minor adjustments to the design for practical or aesthetic reasons.
- The Client acknowledges that handmade cakes may have slight variations from reference images.

3. Cake Specifications

- The Client shall specify the number of guests, preferred cake size/tier configuration, shape, flavours, and any dietary restrictions on the order form.
- The Client is responsible for informing the Vendor of any allergies or dietary needs at the time of order. The Vendor will use reasonable efforts to accommodate but does not guarantee allergen-free products.
- An accurate count of guests and cake requirements must be provided at least 14 days prior to the wedding.

4. Add-ons & Extras

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- Additional items such as dessert tables, packaging for favours, tastings, or other services must be requested via the order form and will incur additional charges.
 - Any changes or additions after the initial confirmation may be subject to extra fees and are subject to availability.
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5. Payment & Cancellation Policy

- Full payment confirms your booking, with 50% serving as a non-refundable deposit.
 - Payment must be made via bank transfer or other agreed methods, with proof of payment sent via email or WhatsApp.
 - Cancellations made more than 14 days before the event will forfeit the deposit but incur no further charges.
 - Cancellations made within 14 days of the event will be subject to a 75% cancellation fee. Unfortunately, cancellations made within 5 days of the event are non-refundable and will not be eligible for credit.
 - This non-refundable portion covers costs associated with planning, preparation, materials, and potential lost business due to holding the date.
 - No refunds are issued; instead, a credit voucher valid for 36 months will be issued for cancellations, according to the notice period.
 - The Vendor reserves the right to cancel or decline orders for non-payment or breach of these terms.
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6. Delivery, Setup & Responsibility

- Delivery charges are calculated based on the distance from the Vendor's premises and will be quoted separately.
 - The Vendor will deliver and set up the cake at the specified venue and within the agreed time window.
 - The Client must ensure access, adequate space, and suitable conditions for cake setup.
 - The Client or an authorized representative must supervise the cake upon delivery. The Vendor is not liable for damages caused after setup or due to mishandling.
 - The Client agrees to follow the Vendor's transport, storage, and serving guidelines to maintain the quality and safety of the cake.
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7. Handling, Storage & Serving

- The Client agrees to store the cake in a cool, dry place, away from direct sunlight, and to consume the cake within 2-6 hours of setup for optimal freshness.
- The cake should be refrigerated if necessary and removed at least 30 minutes before serving to reach room temperature.
- The Vendor is not responsible for damage caused by improper handling or storage after delivery.

8. Product Variations & Photography

- The Client understands that handmade, decorated cakes may have slight variations from images or initial designs.
- The Vendor may photograph the finished cake for promotional purposes unless expressly notified otherwise in writing.

9. Allergens & Dietary Restrictions

- The Vendor will specify ingredients used but cannot guarantee allergen-free products.
- The Client is responsible for informing the Vendor of any allergies or dietary restrictions at least 14 days prior to the event.

10. Liability & Limitations

- The Vendor shall not be liable for damages or loss caused by mishandling, improper storage, or external factors beyond its control.
- The Client shall inspect the cake upon delivery and notify the Vendor of any issues within 24 hours. The Vendor's liability shall be limited to the value of the cake.

10A. Force Majeure

- The Vendor shall not be held liable for delays or failure to perform any part of this Agreement due to events beyond their reasonable control, including but not limited to natural disasters, power outages, transport delays, civil unrest, pandemics, or changes in government regulations.

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11. Miscellaneous

- This Agreement is governed by the laws of South Africa.
- Any disputes arising shall be resolved in the courts of Durban.
- This Agreement constitutes the entire understanding between the parties and supersedes any prior arrangements.

12. Acknowledgment & Acceptance

- By signing below, the Client confirms that they have read, understood, and agree to these terms and conditions, including policies on payments, cancellations, handling, and liability.

Client Name: _____

Signature: _____

Date: _____

Vendor (OCD Representative): _____

Signature: _____

Date: _____
